

MEMORANDUM OF UNDERSTANDING

C1 CDL Training Program — Workforce Funding Partnership Agreement
Goals, Objectives, Program Structure, Financial Terms & Mutual Expectations

OFFICIAL GOVERNMENT & AGENCY USE

TRAINING PROVIDER

Elevate for Humanity

2Exclusive LLC-S d/b/a Elevate for Humanity
Career & Technical Institute
Indianapolis, Indiana
CAGE Code: 0Q856 · SAM.gov Registered
UEI: Available upon request
Authorized Representative: Elizabeth Greene,
Founder & CEO

FUNDING AGENCY / WORKFORCE PARTNER

Agency / Organization Name:

Authorized Representative & Title:

Mailing Address:

Phone / Email:

DUNS / UEI (if applicable):

I. PURPOSE & AUTHORITY

This Memorandum of Understanding ("MOU" or "Agreement") is entered into between **Elevate for Humanity Career & Technical Institute** ("Elevate," "Training Provider") and the Funding Agency / Workforce Partner identified above ("Agency," "Partner," or "Funding Sponsor").

This Agreement establishes the terms and conditions under which the Agency will refer eligible participants to Elevate's C1 CDL Training Program and under which Elevate will provide training services, manage enrollment, and administer funding disbursements in accordance with applicable federal and state workforce development requirements, including but not limited to the Workforce Innovation and Opportunity Act (WIOA), Title I.

Both parties enter this Agreement in good faith to advance workforce development, increase employment outcomes, and support the economic mobility of program participants.

II. PROGRAM GOALS & OBJECTIVES

Class A CDL Program

To provide participants with the knowledge, skills, and hands-on driving experience required to obtain a Class A Commercial Driver's License (CDL) and secure employment as a professional commercial vehicle operator.

Class B CDL Program

To equip participants with the competencies necessary to obtain a Class B CDL and enter the workforce as a qualified commercial vehicle operator.

Shared Program Objectives

- Deliver classroom, range, and road instruction in compliance with FMCSA Entry-Level Driver Training (ELDT) requirements and applicable Indiana BMV standards.
- Prepare each participant for the CDL skills test administered by the Indiana BMV.
- Provide job placement assistance and connect participants with carrier employment opportunities.
- Maintain full compliance with all applicable DOL, FMCSA, Indiana DWD, and WIOA regulations.
- Report participant outcomes to the Agency as required for performance accountability.

III. PROGRAM COSTS

Program	Tuition	Training Includes	Not Included
Class A CDL	\$4,995	Classroom instruction (online or in-person), behind-the-wheel range training, road training, ELDT certification	Indiana BMV CDL permit fee, skills test fee, medical exam
Class B CDL	\$3,495	Classroom instruction (online or in-person), behind-the-wheel range training, road training, ELDT certification	Indiana BMV CDL permit fee, skills test fee, medical exam

Indiana BMV fees, CDL permit fees, and medical examination costs are the sole responsibility of the participant or sponsoring agency and are not included in the tuition amounts above.

Funding Administration

Elevate for Humanity serves as the authorized training provider and is responsible for managing all enrollment, training delivery, and participant recordkeeping. The Agency is responsible for authorizing and disbursing workforce funding on behalf of eligible participants in accordance with its program guidelines (e.g., WIOA Individual Training Account, Workforce Ready Grant, FSSA IMPACT, or other approved funding mechanism).

Invoicing

The Agency shall submit invoices to Elevate for Humanity for the full approved funding amount per participant. Elevate will process and remit payment to the Agency in accordance with the schedule below.

Payment Schedule — Per Participant

Disbursement 1 — Program Start (50%)

50% of approved funding

Remitted by Elevate to the Agency upon confirmed participant class start date.

Training does not begin until funding authorization is received.

Disbursement 2 — Program Completion (50%)

50% of approved funding

Remitted by Elevate to the Agency upon participant completion of all required training hours and CDL skills test attempt.

Referral Fee — Retained by Elevate for Humanity: Elevate for Humanity retains a **\$500.00 referral and administrative fee** per participant class start from the total funding amount disbursed. This fee covers enrollment processing, participant coordination, and program administration. The Agency's invoice should reflect the full approved funding amount; Elevate will remit the balance after retaining the \$500 referral fee.

Example: If the approved funding amount is \$4,995 (Class A CDL), Elevate retains \$500 and remits \$4,495 to the Agency across the two disbursements above.

Late Payment: Disbursements not processed within 30 days of the applicable milestone are subject to a 1.5% monthly administrative fee. Elevate reserves the right to suspend future referrals for agencies with unresolved billing disputes.

V. REFUND & NO-SHOW POLICY

Participant No-Show (Does Not Start Training)

If a referred participant does not report to training on the confirmed class start date and does not contact Elevate within **24 hours** to reschedule, the participant will be considered a no-show. In the event of a no-show:

- No funding will be disbursed to the Agency.
- The \$500 referral fee is **not charged** for no-show participants.
- The Agency may re-refer the same participant for a future cohort, subject to availability and re-authorization of funding.

Participant Withdrawal After Training Begins

If a participant withdraws or is dismissed after training has begun, the following applies:

- **Within the first 3 calendar days of training:** Elevate will refund 100% of Disbursement 1 to the Agency, less the \$500 referral fee. No Disbursement 2 will be made.
- **After day 3 through end of Week 1:** Elevate will refund 50% of Disbursement 1 to the Agency, less the \$500 referral fee.
- **After Week 1:** No refund is due. Disbursement 1 is earned and non-refundable. Disbursement 2 is not owed if the participant does not complete the program.

No Refund — Dismissal for Cause: No refund will be issued if a participant is dismissed for violation of safety rules, conduct standards, drug screening failure, or attendance policy violations. Disbursement 1 is non-refundable in all dismissal-for-cause scenarios.

VI. PROGRAM FORMAT & STRUCTURE

Classroom Training — Both Class A & Class B

- **Duration:** One (1) week
- **Delivery:** Online or in-person
- **Content:** FMCSA ELDT theory, federal safety regulations, Hours of Service, pre-trip inspection, foundational CDL knowledge

Behind-the-Wheel, Range & Road Training

- **Class A CDL:** Three (3) weeks of range and road instruction, followed by Indiana BMV CDL skills test
- **Class B CDL:** One (1) week of range and road instruction, followed by Indiana BMV CDL skills test

On-the-Job Training (OJT)

Upon successful completion of the CDL skills test and issuance of a Commercial Driver's License, participants may be placed in an OJT arrangement with a partner employer. OJT placements are coordinated by Elevate's Job Placement Coordinator. The Partner/Employer is responsible for providing a safe, compliant OJT work environment and supervising the participant in accordance with applicable DOL and FMCSA standards.

VII. ATTENDANCE, CONDUCT & TRAINING HOURS

Attendance Requirements

- Participants may have no more than **two (2) absences** during the program.
- Exceeding the maximum absence limit may result in dismissal from the program without refund.

Training Schedule

- Monday – Friday, **7:00 a.m. – 4:00 p.m.**
- Includes one (1) hour lunch break and two (2) fifteen-minute breaks.
- Participants must arrive on time each day. Excessive tardiness may result in disciplinary action or removal.

Transportation: Transportation to and from CDL training is the responsibility of the participant, employer, or sponsoring agency. Elevate for Humanity does not provide transportation services.

Professional Conduct

Participants are expected to comply with all facility rules, safety guidelines, and instructor direction at all times. Violations may result in immediate dismissal without refund.

VIII. JOB PLACEMENT & EMPLOYMENT OUTCOMES

- Each participant will be assigned a **Job Placement Coordinator** who will provide guidance on employment opportunities and carrier partnerships.
- Participants will be introduced to employment opportunities beginning on **Day 1** of the program.
- Representatives from partner carriers will regularly present to classes throughout training.
- Elevate will report employment outcomes to the Agency as required for WIOA or other applicable performance accountability measures.

IX. DROP & DISMISSAL POLICY

A participant may be dismissed from the program for any of the following reasons:

1. Failure to meet attendance or timeliness requirements.
2. Insufficient progress or inability to meet skill requirements during training.
3. Failure or refusal of required drug screening.
4. Violation of safety rules or conduct standards, as determined by program leadership.

Refer to Section V for applicable refund terms upon dismissal or withdrawal.

X. PARTICIPANT RECORDS & ELEVATE RIGHTS

- **Training Records:** Elevate for Humanity retains all rights to participant training records, completion documentation, credential records, and program data in accordance with FERPA and applicable workforce program requirements. Records will be made available to the Agency upon written request for audit or compliance purposes.
- **CDL Credentials:** CDL credentials are issued by the Indiana BMV directly to the participant. Elevate retains records of training completion and ELDT certification.
- **Program Intellectual Property:** All curriculum, training materials, assessments, and program content developed by Elevate for Humanity are the sole property of Elevate for Humanity and may not be reproduced, distributed, or used without prior written consent.

XI. CONFIDENTIALITY, NON-DISCLOSURE & NON-COMPETE

Non-Disclosure

Both parties agree to keep confidential all proprietary information, participant data, pricing, curriculum, business processes, and partnership relationships disclosed in connection with this MOU. Neither party shall disclose such information to any third party without prior written consent, except as required by law or applicable federal/state program regulations.

Non-Compete

During the term of this MOU and for a period of **two (2) years** following its termination, the Agency agrees not to directly solicit, recruit, or hire Elevate for Humanity instructors, staff, or subcontractors for the purpose of replicating or competing with Elevate's CDL training program. The Agency further agrees not to use Elevate's curriculum, training materials, or program structure to establish a competing CDL training program without written authorization from Elevate for Humanity.

Participant Non-Solicitation

The Agency agrees not to directly solicit participants enrolled in or referred through Elevate's program for competing training programs during the term of this MOU and for one (1) year following termination.

XII. TERM & TERMINATION

- This MOU is effective upon the date of last signature below and remains in effect for **one (1) year**, automatically renewing annually unless terminated in writing by either party with 30 days' notice.
- Either party may terminate this MOU for cause with written notice. All outstanding payment obligations and confidentiality provisions survive termination.
- Termination does not affect the rights or obligations of either party with respect to participants already enrolled at the time of termination.

XIII. GENERAL PROVISIONS

- **Governing Law:** This Agreement shall be governed by the laws of the State of Indiana.
- **Entire Agreement:** This MOU constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior discussions, representations, or agreements.
- **Amendments:** Any modification to this MOU must be made in writing and signed by authorized representatives of both parties.
- **Severability:** If any provision of this MOU is found to be unenforceable, the remaining provisions shall remain in full force and effect.
- **Non-Discrimination:** Both parties agree to comply with all applicable federal and state non-discrimination laws in the administration of this Agreement, including Title VI of the Civil Rights Act, Section 504 of the Rehabilitation Act, and WIOA Section 188.

XIV. AGREEMENT & ACKNOWLEDGEMENT

By executing this MOU, both parties acknowledge they have read, understand, and agree to all terms and conditions set forth herein. The Agency confirms that each referred participant has been determined eligible for funding under the applicable program and that the Agency assumes responsibility for funding authorization and disbursement in accordance with this Agreement.

XV. AUTHORIZED SIGNATURES

FUNDING AGENCY / WORKFORCE PARTNER

Authorized Signature

Printed Name & Title

Agency / Organization Name

Date

ELEVATE FOR HUMANITY

Authorized Signature

Elizabeth Greene, Founder & CEO

Date

PARTICIPANT ACKNOWLEDGEMENT

Participant Signature

Printed Name

Date

Program Enrolled: ☐ Class A CDL ☐ Class B CDL

